# ALTA SURVEY

Banyan Marketplace | San Antonio, TX

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| **Project** | Banyan Marketplace |
| **Address** | 307 Airport Street, San Antonio, TX 80406 |
| **Client** | Juniper Peak Real Estate Fund |
| **Field Work Date** | April 24, 2023 |

**1. Surveyor's Certificate.** To Juniper Peak Real Estate Fund, Cornerstone Title Agency and Northfield Commercial Bank: this is to certify that this map or plat and the survey on which it is based were made in accordance with the 2021 Minimum Standard Detail Requirements for ALTA/NSPS Land Title Surveys. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**2. Legal Description.** Being a tract of land situated in the county of record, beginning at an iron rod found at the intersection of the north line of Airport Street with the east line of the tract; thence N 34° 34' 34" E, a distance of 3434.34 feet to an iron rod set. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**3. Survey Note 1.** The property contains 16.16 acres, more or less, and has direct access to Airport Street, a public right of way. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**4. Survey Note 2.** Parking: 4242 regular spaces and 42 accessible spaces were counted on the surveyed property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

**5. Survey Note 3.** No evidence of recent earth moving work, building construction or building additions was observed in the process of conducting the fieldwork. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**6. Survey Note 4.** The surveyed property lies within Zone X (areas determined to be outside the 0.2% annual chance floodplain) per FIRM panel in effect. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**7. Easements.** Utility easements as shown on the face of the survey are plotted to the extent described in the record documents provided in the title commitment. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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# Certification

I certify that, to the best of my knowledge and belief, the statements of fact contained in this report are true and correct and that I have no present or prospective interest in Banyan Marketplace and no personal interest with respect to the parties involved.

The analyses, opinions and conclusions are limited only by the reported assumptions and limiting conditions. The inspection of the property was performed on March 30, 2023.

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Emily Ramirez, Senior Associate

Axis Land Surveying

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